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Lawmakers target looters in wake of arrests in Los Angeles-area burn zones - California lawmakers are proposing tougher penalties on looting and other opportunistic crimes during disasters after over two dozen individuals were arrested in evacuation zones after the recent deadly wildfires in Los Angeles County.

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California lawmakers are proposing tougher penalties on looting and other opportunistic crimes during disasters after over two dozen individuals were arrested in evacuation zones after the recent deadly wildfires in Los Angeles County.

Three lawmakers have proposed a tough-on-crime approach classifying burglaries in emergency areas as felony offenses, which could lead to prison sentences. One of those bills also would crack down on people who impersonate first responders during a wildfire.

The L.A. County Sheriff's Department created a Looter Suppression Team last month to provide closer surveillance and a quicker response time to Altadena neighborhoods that were evacuated.

Lawmakers who crafted this legislation see it as another way to ease residents' fears of their evacuated homes being burglarized. Some burglars have reportedly stolen more than $200,000 worth of valuables from a home in Mandeville Canyon and another group is alleged to have stolen an Emmy award from an Altadena home.

"This wildfire crisis has brought out the best and worst in us," said Los Angeles County Dist. Atty. Nathan Hochman, who supports the anti-looting bill introduced Monday. "The point isn't to fill prisons with a whole bunch of looters. The idea is to deter these looters in the first place."

Hochman's office has filed charges in 27 criminal cases related to the wildfires, but he said current law to crack down on these crimes is "underwhelming."

The bill Hochman supports, backed by firefighters, the California Police Chiefs Assn. and the Los Angeles County Sheriff's Department, would give law enforcement the ability to seek tougher penalties and offer them "better tools" to prosecute looters and those who impersonate law enforcement personnel. The bill also would close loopholes to ensure protection from looters through the rebuilding process, to protect damaged structures and vehicles.

Assemblymember Jesse Gabriel (D-Encino), who co-authored the legislation with Jacqui Irwin (D-Thousand Oaks) and Blanca Pacheco (D-Downey), said the bill is in direct response to the looters that Gabriel said created "chaos and confusion."

"When my community was under mandatory evacuation orders, many residents were deeply concerned about their homes and their property, which created further anxiety about following the evacuation orders," Gabriel said.

Republican lawmakers Sen. Suzette Martinez Valladares from Acton and Assemblymember Josh Hoover from Folsom also introduced measures last month. Hoover's plan proposed making it a felony to commit burglary or grand theft in an area where there has been a declared state of emergency, local emergency, or which is under an evacuation order. Valladares' bill would classify burglary committed during a state of emergency as a felony.

Hoover said the fact that there are three bills is "a good thing."

"At the end of the day, we're all going to need to work together to figure out which bill is the best," he said. "But I

think the fact that we've all introduced legislation is a really good sign and that we can figure something out."

The Los Angeles County district attorney's office said the suspects already are facing the maximum penalties for their crimes, including one person who was charged with unlawfully using a badge to impersonate a firefighter and enter an evacuation zone in Malibu. Two others were charged with impersonating a firefighter, a misdemeanor, and can face a maximum sentence of 180 days in county jail. Others are facing felony charges, including a group of seven people charged with first-degree felony residential burglary. If found guilty, they could be sentenced to up to six years in prison.

Advocates and public defenders, including Brooke Longuevan, president of the Los Angeles County public defenders union, said there are existing penalties to prohibit and "sufficiently punish" looting and other crimes.

"We are concerned that this type of legislation would only further mass incarceration, selective policing, and strain an already overwhelmed criminal legal system," Longuevan said in an email.

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